

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Ellman	Team: Squad #08	CCRB Case #: 201705482	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/27/2017 5:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/27/2018	Precinct: 114		
Date/Time CV Reported Wed, 06/28/2017 9:28 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/05/2017 12:01 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Scott Gandasegui	14773	955939	PSA 9
2. POM Steven Silveira	29987	951256	PSA 9
3. POM Antonios Spiris	24063	951297	PSA 9
4. POM Jose Jimenez	27405	938717	PSA 9
5. POM Nicholas Russo	10519	962072	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Russo	Abuse: Police Officer Nicholas Russo entered § 87(2)(b)	A . Unsubstantiated
B . POM Jose Jimenez	Abuse: Police Officer Jose Jimenez entered § 87(2)(b)	B . Unsubstantiated
C . POM Nicholas Russo	Abuse: Police Officer Nicholas Russo searched § 87(2)(b)	C . Unsubstantiated
D . POM Jose Jimenez	Abuse: Police Officer Jose Jimenez searched § 87(2)(b)	D . Unsubstantiated
E . POM Scott Gandasegui	Abuse: Police Officer Scott Gandasegui searched § 87(2)(b)	E . Unsubstantiated
F . POM Steven Silveira	Abuse: Police Officer Steven Silveira searched § 87(2)(b)	F . Unsubstantiated
G . POM Antonios Spiris	Abuse: Police Officer Antonios Spiris searched § 87(2)(b)	G . Unsubstantiated

Case Summary

On June 27, 2017, at approximately 5:30 p.m., § 87(2)(b) was in his apartment at § 87(2)(b) in Queens when he heard a pounding on his door. § 87(2)(b) opened the door to find PO Nicholas Russo and PO Jose Jimenez, both of PSA 4, standing in his hallway. § 87(2)(b) stood in the middle of the doorway, yet PO Russo and PO Jimenez then allegedly pushed past him and entered into the residence (**Allegations, A, B**). PO Scott Gandesequi, PO Steven Silveira, and PO Antonios Spirakis, all of PSA 4, responded to the location shortly thereafter. PO Russo, PO Jimenez, PO Gandesequi, PO Russo, and PO Spirakis all then allegedly began looking through § 87(2)(b)'s drawers and cabinets (**Allegations C—G**).

Officers told § 87(2)(b) that he was not supposed to be in his apartment due to an order of protection his ex-girlfriend, § 87(2)(b) took out against him. § 87(2)(b) stated that he tried to show officers documentation proving that he lived in the apartment, yet was ignored. § 87(2)(b) stated the officers left after approximately 15 minutes in the apartment.

§ 87(2)(b) separately filed a complaint to the CCRB that included allegations from this date and concerning this apartment and § 87(2)(b). However, § 87(2)(b) missed numerous scheduled interviews and ultimately did not provide a sworn statement to the CCRB.

Mediation, Civil and Criminal Histories

- This case was deemed ineligible for mediation.
- A FOIL request was submitted on October 25, 2017, to determine if § 87(2)(b) filed a notice of claim in relation to this incident. This document will be added to the casefile upon receipt.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b). (Board Review 03)
- This is the first CCRB allegation for each PO Russo, PO Silveira, and PO Gandesequi. (Board Reviews 04, 13, 12)
- PO Spirakis has one prior allegation in his six-year-tenure with the NYPD, which was withdrawn. (Board Review 14)

Officer Identification

§ 87(2)(g), PO Russo and PO Jimenez. PO Russo and PO Jimenez were identified through a combination of officer testimony and documents. § 87(2)(g)

Foremost, PO Russo and PO Jimenez are the first officers to arrive at the location per their memo books, and are the sector assigned the job (Sector B) per event information. Further, though PO Jimenez believed that officers were already inside the apartment upon their arrival, PO

Russo stated that he was present for when officers initially knocked on the door and were granted entry by § 87(2)(b) PO Spiris and PO Silveira, of Sector A, both stated in their memo books that they were backing Sector B at the location. Though PO Russo stated that PO Gandesegui was present when officers initially entered into the apartment, PO Gandesegui stated that officers were already inside upon his arrival. Further, PO Gandesegui stated he responded to the location approximately five minutes after the job came over, which would have been after PO Russo and PO Jimenez arrived, per their memo books. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Nicholas Russo entered § 87(2)(b)

§ 87(2)(b) .

Allegation B—Abuse of Authority: Police Officer Jose Jimenez entered § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated officers were pounding on his door, and when he answered he stood in the doorway to demonstrate that the officers were not welcome in his home. Immediately, however, officers brushed past him and entered the apartment. § 87(2)(b) stated that there had been no discussion of the officers coming into the apartment, and that officers never asked for his consent to enter. Upon entry, § 87(2)(b) attempted to explain to the officers that he was the legal occupant of the apartment, despite claims from his ex-girlfriend, § 87(2)(b) that she was the legal tenant. § 87(2)(b) further explained that he had an order of protection out against § 87(2)(b) that prevented her from coming to the apartment. § 87(2)(b) stated that he presented the officers with documentation that indicated that § 87(2)(b)'s residence was elsewhere. (Board Review 06)

§ 87(2)(b) stated that she was arrested on June 26, 2017, for violating an order of protection § 87(2)(b) had against her. § 87(2)(b) stated that she also has an order of protection against § 87(2)(b) § 87(2)(b) stated that she was released on June 27, 2017, and returned to § 87(2)(b) § 87(2)(b) which she stated was her legal residence. She stated that § 87(2)(b) was present upon her return, which she believed was in violation of the order of protection she had out against him. (Board Review 15)

Note, both § 87(2)(b) and § 87(2)(b) called 911. § 87(2)(b) called 911 at 5:34 p.m. stating that § 87(2)(b) was changing the locks of the apartment, and that she has an order of protection out against him. § 87(2)(b) called at 6:03 p.m., stating that § 87(2)(b) was trying to kick him out of the apartment.

PO Russo stated that he, PO Jimenez and PO Gandesegui knocked on the door of § 87(2)(b), and § 87(2)(b) answered. PO Russo stated that § 87(2)(b) invited the officers in, but he could not recall how precisely § 87(2)(b) consented to the entry either verbally or physically. PO Russo stated that § 87(2)(b) was calm at this time. PO Russo did not recall if § 87(2)(b) was standing in the doorway when officers came inside, or if they had to physically brush past him to enter. (Board Review 07)

PO Jimenez, PO Gandesegui, and PO Spiris all stated that officers were already in the apartment upon their arrival. (Board Reviews 08, 09, 10) PO Gandesegui additionally stated that he spoke

with § 87(2)(b) prior to arrival at the apartment, at which point she conveyed that she was inside the apartment and did not want to leave. However, upon arrival, § 87(2)(b) was not present. PO Silveira had no recollection of the incident. (Board Review 11)

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b). As such, it is recommended that *Allegations A and B* be closed as *unsubstantiated*.

Allegation C—Abuse of Authority: Police Officer Nicholas Russo searched § 87(2)(b)

§ 87(2)(b) :

Allegation D—Abuse of Authority: Police Officer Jose Jimenez searched § 87(2)(b) § 87(2)(b)

§ 87(2)(b)

Allegation E—Abuse of Authority: Police Officer Scott Gandasegui searched § 87(2)(b)

§ 87(2)(b)

Allegation F—Abuse of Authority: Police Officer Steven Silveira searched § 87(2)(b) § 87(2)(b)

§ 87(2)(b)

Allegation G—Abuse of Authority: Police Officer Antonios Spiris searched § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated that, immediately upon entry, officers started looking through various cabinets and drawers in his apartment, stating they looked through “anything that could open.”

The officers are unanimous in denying this allegation. Save PO Silveira, who did not recall the incident at all, PO Russo, PO Jimenez, PO Gandasegui and PO Spiris all stated that no officers searched the apartment, nor did they look through any drawers or cabinets. The officers further stated that their time in the apartment was limited to speaking to § 87(2)(b) near the entrance of his apartment, with the exception of when § 87(2)(b) took the officers into a back room to present them with documentation about § 87(2)(b)

§ 87(2)(g)
§ 87(2)(b). As such, it is recommended that *Allegations C—G* be closed as *unsubstantiated*.

Squad: 8

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

